Te Tiriti Entrenchment

Executive Summary

Te Tiriti o Waitangi is the constitutional foundation of Aotearoa. It is not a creation of Parliament, and its authority does not depend on Parliament's permission.

Successive governments have nevertheless treated Crown obligations under Te Tiriti as politically discretionary, able to be weakened, removed or ignored by the Government of the day.

Te Pāti Māori will change that by creating durable and enforceable minimum obligations on the Crown, strengthening remedies when breaches occur, and resourcing Māori-led constitutional transformation.

The purpose is to entrench the Crown's conduct, not to entrench a Crown version of Te Tiriti.

The legislation will not constitute, define, replace, limit or domesticate Te Tiriti. It will bind Ministers, departments and Crown agencies to obligations that arise from Te Tiriti itself.

Context

He Whakaputanga o te Rangatiratanga o Nu Tireni, signed in 1835, affirmed the mana and rangatiratanga of the rangatira and hapū of Aotearoa before Te Tiriti o Waitangi was signed. It declared that sovereign authority resided with the rangatira and hapū and could not simply be assumed by another authority.

Te Tiriti o Waitangi followed in 1840. It did not extinguish that authority. Te Tiriti established a relationship between continuing Māori authority and the authority exercised by the Crown.

Te Tiriti o Waitangi precedes New Zealand's parliamentary system. It established an enduring relationship between Māori authority and Crown authority. As a consequence, legislation cannot be the source of Te Tiriti o Waitangi's mana.

The problem is that Crown institutions have too often acted as though the Crown can decide when, how and to what extent its Te Tiriti obligations apply.

Māori should not continually have to take the Crown to court to make it honour Te Tiriti. Nor should Te Tiriti protections depend on the political preferences of the Government of the day.

Mātike Mai Aotearoa has already undertaken foundational Māori-led constitutional work. The Waitangi Tribunal has established an extensive record of Crown breaches. Aotearoa has endorsed the United Nations Declaration on the Rights of Indigenous Peoples. What is missing is enforceable accountability and the resources to advance the next stage.

Our Position

- We acknowledge He Whakaputanga o te Rangatiratanga o Nu Tireni as the foundational assertion of the mana and rangatiratanga of Māori and the constitutional authority of rangatira and hapū.
- Te Tiriti did not create Māori authority. It recognised a relationship with authority that already existed.
- Te Tiriti o Waitangi has authority in its own right. Parliament does not give Te Tiriti its mana.
- Tino rangatiratanga is an authority, not an advisory interest.
- Legislation should bind Crown conduct to Te Tiriti, not bring Te Tiriti under Parliamentary control.
- Te Tiriti o Waitangi in te reo Māori will be the primary reference point for Crown obligations.
- The Crown must be legally accountable when it breaches its Te Tiriti obligations.
- Constitutional transformation must be led by iwi, hapū and Māori, not imposed by political parties.
- Te Pāti Māori's role is a mahi function, not a mana function. Our role is to resource the people to determine the constitutional future for themselves.

Te Pāti Māori will...

1. Establish a Mātike Mai Fund

Establish a dedicated Mātike Mai Fund of $220 million over four years to independently resource the next stage of constitutional transformation.

The Fund will:

1. establish and resource an independent Mātike Mai secretariat;
2. fund iwi, hapū and Māori-led constitutional kōrero across every rohe;
3. resource the further independent working group envisaged by Mātike Mai;
4. support nationwide constitutional engagement, including rangatahi participation;
5. convene a Māori Constitutional Convention and begin formal dialogue with tangata Tiriti, local government and the Crown; and
6. progress toward a national Tiriti Convention.

Te Pāti Māori will establish 2040 as the target for constitutional transformation in Aotearoa.

2. Implement the United Nations Declaration on the Rights of Indigenous Peoples

Within the first 100 days, Te Pāti Māori will restore and resource development of a national action plan to implement the United Nations Declaration on the Rights of Indigenous Peoples.

Aotearoa has already endorsed UNDRIP. What is missing is a domestic implementation framework. The plan will identify the legislative, policy and institutional changes required to give practical effect to Indigenous rights, with meaningful and independent Māori participation.

UNDRIP will complement, not replace, Te Tiriti.

3. Establish an Independent Te Tiriti Commission

Establish an independent Te Tiriti Commission as an Officer of Parliament, with expertise in Te Tiriti, tikanga Māori, constitutional law and Māori-Crown relations.

The Commission will not define Te Tiriti or become the source of its meaning. Its role is to independently assess and enforce the Crown's minimum statutory obligations arising from Te Tiriti.

Its governance and appointment arrangements will include meaningful Māori participation and protect the Commission from control by the Government of the day.

The Commission will operate independently of the Government of the day and will have statutory powers to:

1. investigate Crown decisions, policy and Executive action for Te Tiriti compliance;
2. require information and evidence from Ministers, departments and Crown agencies;
3. report directly to Parliament on breaches and systemic failures;
4. require remedial action where Crown processes fail to meet Te Tiriti obligations;
5. stop or suspend Executive decisions where a serious breach is found; and
6. create Te Tiriti Compliance Orders

Where the Commission finds that an Executive decision seriously breaches statutory Te Tiriti obligations, it may issue a Te Tiriti Compliance Order stopping or suspending that decision.

If the Crown disagrees, it must apply to the High Court to have the order overturned. Until the Court determines otherwise, the order remains in force.

This reverses the burden of accountability: where a serious breach is found, the Crown must justify why it should be permitted to proceed.

The Commission will not invalidate an Act of Parliament. It may, however, assess proposed legislation and report directly to Parliament where a Bill is inconsistent with Te Tiriti.

4. Make Waitangi Tribunal recommendations binding

Amend the Treaty of Waitangi Act 1975 so that Waitangi Tribunal recommendations are binding on the Crown, with clear implementation timeframes, reporting requirements and judicial enforcement where necessary.

The two institutions will have complementary roles:

- The Waitangi Tribunal will investigate breaches and provide binding remedies.
- The Te Tiriti Commission will scrutinise Executive action and seek to prevent serious breaches before they occur.

Together, they make the Crown accountable for remedying breaches and for preventing new ones.

Our Commitment

Te Pāti Māori will move Crown responsibility under Te Tiriti from political discretion to enforceable legal obligation.

We will not ask Parliament to give Te Tiriti its authority, define its limits, or make itself the owner of its meaning. Parliament did not create Te Tiriti.

Instead, we will use legislation to bind Crown conduct to obligations arising from Te Tiriti, establish independent mechanisms to bring the Crown to account, and resource Māori to lead the constitutional transformation that comes next.

This legislation binds the Crown. It does not bind Te Tiriti.